

FORM F28
(RULE 9-7 (10))

Court File No.: _____

Court Registry: _____

In the Supreme Court of British Columbia

Claimant: _____

Respondent: _____

**LETTER OF REQUEST FOR EXAMINATION
OF WITNESS OUT OF JURISDICTION**

[Rule 21-1 of the Supreme Court Family Rules applies to all forms.]

To the judicial authority of _____ in the
_____ of _____.

Whereas this proceeding is now pending in the Supreme Court of British Columbia in which the claimant claims
_____:

And whereas it appears to me that it is necessary for the purposes of justice and for the due determination of the matters in question between the parties that the following persons should be examined on oath or affirmation relating to those matters, namely

_____ of _____, and

_____ of _____

, and such other persons as the lawyers or agents of the parties mutually request you in writing to examine, and it appears that persons are residents within your jurisdiction:

Now I, _____, a Judge of the Supreme Court of British Columbia, hereby request that, for the assistance of the court, you will be pleased to summon the lawyers or agents of the parties and the witnesses to be examined, to attend at such time and place as you appoint, either before you or such other person as according to your procedure is competent to take the deposition examination of witnesses, and that you will cause the witnesses to be examined orally or by interrogatories relating to the matters in question, in the presence of the lawyers or agents of the parties or such of them as, on due notice given, attend the examination:

And I further request that you permit the lawyer or agent of any party present to examine any witness called by the lawyer or agent and the lawyer or agent of any opposing party to cross-examine the witness and the lawyer or agent of the party calling the witness to re-examine the witness:

And I further request that you will be pleased to cause the evidence of each witness to be recorded verbatim, and any document produced on the examination to be marked for identification, and that you will be further pleased to authenticate the depositions taken on the examination and any document, or certified copy of the same or any extract therefrom by the seal of your tribunal or in such other way as is in accordance with your procedure, and to return the same, together with any interrogatories and a note of the charges and expenses payable in respect of the execution of this request to the Under Secretary of State for External Affairs of Canada at Ottawa, Canada [*or, if the judicial authority to whom the letter is addressed is in Canada, to the Deputy Attorney General for the Province of British Columbia, Parliament Buildings, Victoria, British Columbia*], for transmission to the Registrar of the Supreme Court of British Columbia at the courthouse at

Date: _____
[dd mmm yyyy]

A Judge of the Supreme Court of British Columbia